

Application to Re-Test for DUI Defense Law Board Certification National College for DUI Defense, Inc.

Application to Re-Test for DUI Defense Law Board Certification

SECTION A:

1. Name: _____
2. Bar Number: _____ State: _____
3. Firm: _____
4. Address: _____
5. City: _____
6. State: _____ Zip: _____
7. Telephone: (_____) _____
8. Facsimile: (_____) _____
9. E-mail: _____ Website: _____
10. In what year were you first admitted to the bar? _____
11. What is your state of principal practice? _____
12. Does your state have a criminal certification program? _____
13. If so, are you certified by your state? _____
14. List other states in which you are licensed to practice. _____
15. Have you ever been professionally disciplined? _____
(If you answer yes to number 15, attach findings and an explanation).

16. What percentage of your practice is devoted to DUI defense? _____%

17. Will you be requesting any special considerations including, but not limited to, additional time to take the examination due to a disability recognized under law?

Yes _____ No _____

If you answered yes, please:

- a. Detail the special considerations you are requesting;
- b. Attach medical documents, psychological documents, or other proof that you are entitled to the same; and
- c. Identify by name, address, and phone number other institutions or organizations which have previously granted you such considerations.

SECTION B:

1. I have taken the certification examination on the previous occasions:

	Month	Year	Location
a)	_____		
b)	_____		
c)	_____		

2. I understand that I will **not** have to pay another filing fee of \$250.00 if I take the examination for which I am applying within two years of my last full application. However, I **will** have to pay an additional examination fee of \$500.00 to re-take the examination. _____(Initial here)

3. I further understand I must submit another (current) a) Sworn Application Agreement; and b) Affidavit of Conduct with this application in order to be eligible to take this exam.
_____(Initial here)

AFFIRMATION OF CONTENTS

I have personally reviewed the information contained herein and hereby swear, affirm, and declare under penalty of perjury that all of the information on my original application, as well as this Application for Re-Testing for DUI Defense Law Board Certification is complete, true, accurate, and correct.

Signature: _____

The undersigned, a Notary Public in and for the County of _____, in the State of _____, certifies that _____
APPLICANT NAME
appeared in person, and before me SUBSCRIBED and SWORE to the above Application Agreement, under penalties for perjury, this _____ day of _____, 20____, and to which witness my hand and seal.

Notary Public

Stamp or Seal

Printed Name

My commission expires _____, 20_____.

Note to Applicant:

In addition to this application, you must also submit (a) a new *Authorization & Release*; (b) a new *Board Certification Affidavit Affirming Good Standing, Good Conduct & CLE Requirements*; and (c) a check made payable to NCDD in the amount of \$500.00.

PAYMENT INFORMATION

____ Enclosed find a check for \$500.00 for the examination fee made payable to:

The National College for DUI Defense, Inc.

Charge \$500.00 to my:

____ Visa #: _____ Exp. Date _____

____ MasterCard #: _____ Exp. Date _____

____ Amer. Express #: _____ Exp. Date _____

Signature (for credit cards only) _____

Billing Address for Credit Card:

National College for DUI Defense, Inc.

445 S. Decatur Street
Montgomery, Alabama 36104
Telephone: (334) 264-1950
Fax: (334) 264-1920
www.ncdd.com
email: rhea@ncdd.com

Board Certification Affidavit Affirming Good Standing, Good Conduct, and CLE Requirements (Original or Re-Testing Applicants)

I, _____, being duly sworn, depose and state that
PRINT OR TYPE NAME
to my best personal knowledge (Please check all applicable boxes):

- ☐ I affirm I am currently a lawyer in good standing in the state(s) or territory(ies) of _____
and further, I have previously provided to the National College for DUI Defense, Inc. a Certificate of Good Standing from each of the above state(s) or territory(ies).
- ☐ No criminal charges have ever been filed against me which have not been previously disclosed in writing to the College.
- ☐ No allegations of unethical or inappropriate professional conduct have ever been filed against me with any court, grievance committee or other disciplinary board or body which have not been previously disclosed in writing to the College.
- ☐ No claim of professional negligence or other professional liability has ever been asserted against me (with or without the filing of suit) based in any part on my acts or omissions or on those of any other attorney over whom I have supervisory responsibility.
- ☐ My law license has never been suspended or revoked in any state, territory, or in the District of Columbia.
- ☐ I have attended at least 36 hours of College-approved CLE in accordance with Rule 2.3 of the Rules Governing Board Certification.

If you cannot check all of the above, please attach a detailed explanation of the matter. The National College for DUI Defense, Inc. (NCDD) may request additional information bearing on the matter, and shall determine whether the circumstances are such that the attorney should be granted or denied certification, or whether the NCDD should either take no action, or defer action pending receipt of further information. This disclosure should include material that would not otherwise be disclosed to the public in your state, unless disclosure to the NCDD is prohibited by state law and cannot be waived.

The failure of an applicant to promptly disclose the requested information is a material misrepresentation and may be cause for rejecting an application or refusing to grant certification. The applicant shall have, and so acknowledges by his or her certification below, a continuing duty to disclose promptly to the Board of Regents any matters listed above which may arise after the filing of the application. Should an applicant become Board Certified, he or she shall have a continuing duty to promptly report any matters listed above which may arise during the period of certification. Applicant acknowledges by his or her certification below the continuing duty to disclose imposed above, and that a failure to promptly disclose the required information may, by itself, be cause for revocation or suspension of certification.

AFFIRMATION OF CONTENTS

I have personally reviewed all of the above information and hereby swear, affirm, and declare under penalty of perjury that the above information is complete, true, accurate, and correct.

Signature: _____

The undersigned, a Notary Public in and for the County of _____, in the State of _____, certifies that _____

APPLICANT NAME

appeared in person, and before me SUBSCRIBED and SWORE to the above Application Agreement, under penalties for perjury, this _____ day of _____, 20____, and to which witness my hand and seal.

Notary Public

Stamp or Seal

Printed Name

My commission expires _____, 20____.

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Release of Identity to Fellow Applicants

I, _____, having filed an application for Board
PRINT OR TYPE NAME

Certification hereby authorize and give my consent to The National College for DUI Defense, Inc., including, but not limited to, its Committee on Certification, (hereinafter collectively referred to as the "National College"), to release my identity and the following indicated information to other applicants sitting for the certification examination so that I may be contacted regarding forming a study group or for other consultation. Accordingly, I consent to the National College for DUI Defense, Inc. releasing

- ☐ My name _____
- ☐ My cell phone number (____) _____
- ☐ My office phone number (____) _____
- ☐ My email address _____

to other applicants.

Signature of Applicant: _____

Date Signed: _____

The undersigned, a Notary Public in and for the County of _____, in
the State of _____, certifies that _____,

APPLICANT NAME

with whom I am personally acquainted, appeared in person, and before me

SUBSCRIBED and acknowledged that he or she executed the foregoing document for
the purposes therein contained, this _____ day of _____,
20____.

Notary Public

Stamp or Seal

Printed Name

My commission expires _____, 20____.

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Sworn Application Agreement for Board Certification in DUI Defense Law

I, _____, being duly sworn, depose and
PRINT OR TYPE NAME

state that in connection with my application and certification (if granted), I agree to abide by all rules, regulations, and procedures promulgated by the Board of Regents (Board) of the National College for DUI Defense, Inc. (National College), as amended from time to time, and to pay all required fees as due.

Authorization to Review Documents

In making and filing this application for Board Certification in DUI Defense Law, and regarding any subsequent evaluation of my certification status, I authorize all persons, firms, officers, corporations, associations, organizations, state or federal agencies, and institutions to furnish to the National College, or any of its authorized representatives, all relevant documents, records, or other information that may be requested in the investigation of this application, or in the investigation of my continuing satisfaction of the standards for certification.

I agree that all information received by the National College from any person or entity may be treated confidentially by the Board. I hereby waive that confidentiality with regard to any state agency with jurisdiction over legal specialization. I further waive that confidentiality with regard to any organization or entity approved by the state to certify legal specialists to which I have applied, or by which I am certified.

Waiver of Review

I specifically waive any right to review any statements of reference, and all other evaluations in whatever form, submitted to the Board whether solicited by me or by the Board. I agree to have no contact with any person listed as a reference concerning any information or material which may have been provided by the person to the Board. In addition, and in order to protect the assurances of confidentiality given to persons providing references, I agree not to seek discovery of such reference information, material, or evaluations, formally or informally, in any legal proceeding or otherwise.

Release of Liability

I release, discharge, and exonerate the National College, its Board of Regents, officers, executive director, staff, agents, employees and representatives, and any person furnishing information, material, or evaluations to the Board, from any and all liability of every nature and kind arising from the investigation and evaluation of my application, or my continuing satisfaction of the standards for certification.

I agree to defend, or pay the costs of defense for, at the discretion of the Board, any lawsuit, claim, or other action initiated against the Board, any of its Regents, officers, executive director, staff, agents, employees, and representatives arising from my application for board certification, certification renewal, or arising out of my board certification by the National College. I further agree to indemnify the National College and/or its Board of Regents, for any judgment or settlement ordered, or paid, as a result of any such lawsuit, claim, or other action.

Non-Disclosure

I agree that if my application is accepted to take the examination, I will not disclose to any person or entity any information regarding the identity of others who have applied for Board Certification, the format of the examination, the actual questions used, or any information relating to the current examination, any past examination I may have taken, or the examination process to anyone else.

It is further understood, however, that I may participate in a study group of other applicants for the current exam.

Suspension, Revocation or Expiration of Certification

I agree that in the event I become certified and my certification is subsequently suspended or revoked, or I am not recertified, I shall immediately cease to hold myself out in any way as certified by the National College for DUI Defense, and will remove my certificate from public display.

Review of Application and Application Agreement

I hereby certify that I have personally and carefully reviewed each part of my application, together with all supporting documentation. This includes, but is not limited to, this Application Agreement. I further certify that I have made each statement and representation, and answered each question contained therein fully and frankly, without concealment or reservation. Such questions and answers are within my personal knowledge and are true and complete.

Signature of Applicant: _____

The undersigned, a Notary Public in and for the County of _____, in the State of _____, certifies that _____ appeared in person, and before me SUBSCRIBED and SWORE to the above Application Agreement, under penalties for perjury, this _____ day of _____, 20____, and to which witness my hand and seal.

Notary Public

Stamp or Seal

Printed Name

My commission expires _____, 20_____.